These concerns assume immense significance now that the Supreme Court has sentenced Mohammad Afzal to death on the sole basis of circumstantial evidence admitted in the trial. We must also note that this body of evidence was presented by an investigating agency widely known for false arrests and fake encounters. In the Parliament case itself it is now clear that the special cell tried to frame at least three innocent persons. Earlier, the high court had mentioned the production of false arrest memos, doctoring of telephone conversations and illegal confinement of people to force them to sign blank papers. As we saw, it is evident that false confessions were extracted by force.

This is not the place to study in detail the Supreme Court's handling of the circumstantial evidence against Mohammad Afzal. We will cite just two pieces of evidence to illustrate the general problem.

(1) The court held that Afzal knew the deceased terrorists since he identified them. Afzal also admitted the same in his confession. With the confession set aside, the sole evidence against Afzal is that he identified them in the morgue. The evidence has two parts: the identification memo prepared by the police (PW76), and Afzal's signature against the column 'identified by' in the postmortem report. As for the identification memo, the court relied on it because 'there was not even a suggestion put to PW76 touching on the genuineness of the documents relating to identification memo'[22]; in other words, Neeraj Bansal did not object. As for the signatures, the defence counsels decided not to dispute the postmortem reports, as noted. It did not materially affect the other accused, but Afzal is likely to pay with his life for this decision taken without his consent. In his statement under Section 313 of the Criminal Procedure Code, Afzal said: 'I had not identified any terrorist. Police told me the names of terrorists and forced me to identify.'[23]

(2) It is a crucial part of the prosecution's story that the police explain how they reached Mohammad Afzal beginning with the site of attack; otherwise, the arrests would seem to be pre-planned rather than based on a chain of leading evidence. The prosecution claimed that the police finally reached Afzal through a sequence of arrests beginning with Geelani, whom the police could trace first because he held a mobile phone registered with the telecom company Airtel. But the letter from Airtel furnishing the call records and Geelani's residential address was dated 17 December 2001; all the accused had been arrested by 15